

MAINS MASTER PROGRAM (MMP) 2024
POLITY – 9
IMPORTANT ASPECTS OF GOVERNANCE 1

Important aspects of Governance, Transparency & Accountability, E-Governance – applications, models, successes, limitations & potential; Citizens Charters; Transparency & Accountability & institutional & other measures

Important aspects of Governance

➤ **What is Governance?**

- ✓ Governance refers to the processes, systems, and structures through which an organization, institution, or society manages its affairs and makes decisions.
- ✓ It encompasses the rules, practices, and activities that define how power and responsibilities are exercised, how decisions are made, and how stakeholders are held accountable.

➤ **Governance Classification**

- ✓ Public Governance
- ✓ Corporate Governance
- ✓ Non-profit Governance
- ✓ International Governance

➤ **Stakeholders in Governance**

- ✓ Citizens
- ✓ Political Executives
- ✓ Civil servants
- ✓ Business Groups
- ✓ Pressure Groups
- ✓ Non-Governmental Organizations
- ✓ Regulatory Bodies
- ✓ International Organizations

Good Governance

➤ **Genesis**

- ✓ The term "good governance" does not have a specific, single originator, as it evolved over time through various academic, political, and developmental discussions.
- ✓ It gained significant prominence and was popularized by international organizations such as the World Bank, the United Nations (UN), and the International Monetary Fund (IMF) during the late 1980s and early 1990s.
- ✓ These organizations began to emphasize the importance of good governance as a key factor in promoting **economic development, reducing poverty, and ensuring effective delivery of services.**

➤ **Characteristics**

✓ **Transparency**

- Clear and open communication about decision-making processes, policies, and the criteria used to make decisions.
- Easy access to information for stakeholders, which helps build trust and reduces corruption.
- Example – **RTI Act, e-governance etc.**

✓ **Accountability**

- Mechanisms to hold decision-makers responsible for their actions and decisions.
- Systems for monitoring, evaluation, and reporting to ensure that objectives are met, and stakeholders' interests are protected.
- Example – **Citizen Charter, Grievance Redressal Mechanism, CPGRAMS, Social Audit etc.**

✓ **Participation**

- Inclusion of diverse stakeholder voices in the decision-making process.
- Encouragement of active involvement from those affected by the decisions, ensuring their needs and concerns are considered.
- Example – **Gram Sabha, Mygov.in, PESA act, Social Audit, Public disclosure of Bill etc.**

✓ **Responsiveness**

- The ability of an organization or government to respond to the needs and concerns of its stakeholders in a timely manner.
- Adaptability to changing circumstances and feedback.
- Example – **National Disaster Response Act, NDRF, Social Audit, e-governance etc.**

✓ **Consensus-Oriented**

- Seeking broad agreement among stakeholders on important issues.
- Fostering a culture of dialogue and compromise to achieve mutually beneficial outcomes
- Example – **Parliamentary Committees, Pressure Group Lobbying etc.**

✓ **Effectiveness & Efficiency**

- The use of resources in a way that maximizes outcomes and minimizes waste.
- Implementation of policies and decisions in a timely and competent manner.
- Example – **Public service delivery act, Citizen charter, e-governance etc.**

✓ **Equity & Inclusiveness**

- Fair treatment and opportunities for all stakeholders, regardless of their background or circumstances.
- Special attention to marginalized or disadvantaged groups to ensure they are not left out.
- Example – **Positive discrimination or Affirmative action** related policies – **Reservation, MGNREGA, Scholarship, Pension schemes etc.**

✓ **Rule of Law**

- Adherence to legal frameworks and regulations, ensuring that decisions and actions comply with established laws.
- Equality before the law and protection of human rights.
- Example – **Internal grievance redressal mechanism, Audits, Judiciary, NHRC etc.**

➤ **Relationship between people's participation & effectiveness of governance**

- ✓ The effectiveness of the government system and people's participation in governance are closely interrelated, particularly in a diverse and democratic country like India.
- ✓ A participatory approach in governance involves the active engagement and involvement of citizens in the decision-making processes of government and public institutions.
- ✓ The relationship between these two factors is significant in shaping the quality of governance and ensuring that government policies and actions are **responsive to the needs and aspirations of the population**, making **service delivery more efficient & effective, inclusive & making the system more transparent & accountable**.
- ✓ **Case Studies**

a) **Decentralization and Local Governance**

- India's decentralization efforts, through the 73rd and 74th Constitutional Amendments, empowered local governance structures like Panchayati Raj Institutions and Urban Local Bodies.
- These institutions provide a platform for **grassroots participation** in governance, allowing local communities to have a say in **decision-making processes** that directly affect them.
- Effective local governance leads to better service delivery and development outcomes, as decisions are made closer to the people and tailored to local needs making the system more responsive, effective & efficient, and also inclusive in nature.
- Example – **Gram Sabha's, Social Audit etc.**

b) **Right to Information (RTI)**

- The RTI Act in India empowers citizens to participate and seek information from public authorities, thereby **promoting transparency and accountability**.
- Active use of RTI by citizens can expose inefficiencies, corruption, and maladministration, compelling the government to act more **effectively and responsibly**.

c) **Social Audit in India**

- Social audits in India, particularly in the implementation of the **Mahatma Gandhi National Rural Employment Guarantee Act (MGNREGA)**, have enabled local communities to verify the implementation of works and the proper use of funds.
- By involving citizens in monitoring, social audits have exposed fraud and ensured that resources are used as intended.

➤ **Challenges to Good Governance**

✓ **Limited Citizen Participation**

- Barriers to participation, such as lack of access to information, limited education, or restrictive political environments, can prevent citizens from engaging in governance processes.
- This leads to decisions that do not reflect the needs and interests of the broader population, particularly marginalized & vulnerable sections making it less inclusive & non-responsive.

✓ **Lack of Transparency and Accountability**

- Without clear and accessible information about government actions and decision-making processes, citizens cannot hold officials accountable.
- This can lead to poor decision-making, misuse of resources, and a lack of public trust and confidence in government institutions.

✓ **Ineffective Legal and Regulatory Frameworks**

- ✓ Weak legal and regulatory systems can fail to enforce laws and regulations, protect rights, or provide redress for grievances.
- This may lead to unchecked power, violations of rights, and a lack of justice for citizens.

✓ **Corruption**

- Corruption undermines trust in public institutions and hampers the effective delivery of public services. It can take various forms, including bribery, embezzlement, nepotism, and abuse of power.
- corruption diverts resources from essential services, exacerbates inequality, and erodes public trust in governance systems.

✓ **Bureaucratic Inefficiency**

- Overly complex administrative procedures, lack of coordination between agencies, and insufficient capacity can lead to bureaucratic inefficiency.
- Bureaucratic inefficiency can slow down decision-making processes, reduce the quality of public services, and frustrate citizens.

✓ **Socioeconomic Inequality**

- Disparities in wealth, education, and access to resources can lead to unequal participation and representation in governance.
- Social inequality can perpetuate cycles of poverty and exclusion and hinder the achievement of equitable and inclusive governance.

✓ **Cultural and Social Barriers**

- Cultural norms and social hierarchies can limit the participation of certain groups, such as women, minorities, and marginalized communities.
- This can prevent the voices of these groups from being heard, leading to policies that do not address their specific needs.

✓ **Environmental and Public Health Challenges**

- Issues like climate change, pandemics, and natural disasters can strain governance systems and require coordinated, effective responses.

- These challenges can expose weaknesses in governance structures and highlight the need for resilient and adaptive governance mechanisms.
- ✓ **Lack of Administrative Reforms**
 - Continuous & consistent reforms are one of the essential aspects of public administration to make the system more responsive, efficient & effective.
 - However, the reforms in public administration are long pending making the system redundant & less efficient. It's time to take adequate measures to focus on systemic & structural changes that meets the requirement of the present times.

Questions

1. **What do you understand by participatory approach in Governance? Do you think people's participation in governance can lead to Good Governance? Justify with suitable illustration. [15]**
2. **"Effectiveness of the government system at various levels and people's participation in the governance system are interdependent" Discuss their relationship in the context of India. [15]**

Transparency & Accountability

- **How important is transparency & Accountability in Governance?**
 - ✓ Transparency and accountability are fundamental principles in public administration that promote good governance, ethical behaviour, and public trust.
 - ✓ They are essential for ensuring that public officials and institutions act in the best interests of the public and that government actions are open to scrutiny and oversight.
- **Transparency in Governance**
 - ✓ Transparency refers to the openness and clarity with which public institutions operate, making information accessible to the public.
 - ✓ It involves the proactive disclosure of information regarding government policies, decisions, processes, and financial transactions.
- **Key Characteristics of Transparency**
 - ✓ **Access to Information**
 - Citizens have the right to access information held by public authorities. This includes data on public spending, government contracts, and decision-making processes.
 - ✓ **Openness of Processes**
 - Government procedures, including policy formulation, budgeting, and legislative processes, should be open to public scrutiny. This enables citizens to understand how decisions are made and who is responsible.
 - ✓ **Clear Communication**
 - Information should be presented in a clear, accessible, and understandable manner, allowing all citizens, regardless of their educational background, to comprehend it.
 - ✓ **Public Engagement**
 - Opportunities for public consultation and participation in decision-making processes enhance transparency and ensure that a diverse range of voices are heard.

- **Accountability in Governance**
 - ✓ Accountability involves holding public officials and institutions responsible for their actions and ensuring that they meet established standards of conduct and performance.
 - ✓ It requires mechanisms for monitoring, reporting, and enforcing responsibilities.
- **Key characteristics of Accountability**
 - ✓ **Clear Roles and Responsibilities**
 - Public officials and institutions must have clearly defined roles and responsibilities, making it easier to determine who is accountable for specific actions or decisions.
 - ✓ **Monitoring and Reporting**
 - Regular monitoring of government activities, financial audits, and performance evaluations are essential for tracking progress and identifying issues.
 - ✓ **Answerability**
 - Public officials must be able to explain and justify their actions and decisions to the public and relevant oversight bodies.
 - ✓ **Consequences for Non-Performance**
 - There should be mechanisms for sanctioning or removing officials who fail to perform their duties or who engage in misconduct.
- **Mechanisms that promote Transparency & Accountability – Laws, Institutions & Process**
 - ✓ Right to Information Act, 2005
 - ✓ Lokpal & Lokayukta Act, 2013
 - ✓ Prevention of corruption Act, 1988
 - ✓ Whistle Blowers Protection Act, 2014
 - ✓ Performance-based Management system
 - ✓ Ombudsman & Audit Institutions
- **Right to Information Act, 2005**
 - ✓ The Right to Information Act (RTI) of 2005 is a landmark legislation in India that empowers citizens to seek information from public authorities, thereby promoting transparency and accountability in government operations.
 - ✓ The Act came into effect in 2005 and has played a crucial role in making the functioning of public authorities more open and responsive.
- **Key Provisions of the Act**
 - ✓ **Right to Information**
 - Every citizen has the right to request information from a public authority, which is required to respond promptly or within thirty days.
 - The Act covers all levels of government—central, state, and local—and includes various institutions such as the legislature, judiciary, and bodies established or funded by the government.
 - ✓ **Public Authorities**
 - Defined broadly to include any authority or body or institution of self-government established or constituted by or un

- der the Constitution, any other law made by Parliament or state legislatures, or by government order.
- Includes non-governmental organizations (NGOs) substantially financed by the government.
- ✓ **Information Definition**
 - Information includes any material in any form, including records, documents, memos, emails, opinions, advice, press releases, circulars, orders, logbooks, contracts, reports, papers, samples, models, data material held in any electronic form etc.
- ✓ **Obligations of Public Authorities**
 - Proactive disclosure of information in a timely manner through various means, including the internet.
 - Publishing certain categories of information, such as functions, duties, powers, and financial details, regularly.
- ✓ **Exemptions**
 - Specific exemptions where information may be denied include national security, personal information without public interest, and matters that would impede an investigation, among others.
 - Certain intelligence and security organizations are exempt from the Act, except in cases of human rights violations and corruption.
- ✓ **Public Information Officers (PIOs)**
 - Designation of Public Information Officers (PIOs) and Assistant Public Information Officers (APIOs) at all administrative levels to handle requests and assist in providing information.
- ✓ **Request Process**
 - Applicants need to submit a request in writing or electronically, specifying the information required.
 - A nominal fee is charged, with provisions for fee waivers for citizens below the poverty line.
- ✓ **Time Limits**
 - Information must be provided within 30 days of the request.
 - In matters concerning life and liberty, information must be provided within 48 hours.
- ✓ **Appeals and Complaints**
 - Citizens can file an appeal if they are not satisfied with the response or if no response is received within the stipulated time.
 - The first appeal can be made to the senior officer of the PIO within 30 days.
 - A second appeal can be made to the Central Information Commission (CIC) or the State Information Commission (SIC) within 90 days.
- ✓ **Penalties**

- Penalties for PIOs who fail to comply with the provisions of the Act, including fines and disciplinary action.

➤ **Positive outcome of RTI Act**

- ✓ Increase in Transparency
- ✓ Enhanced Accountability
- ✓ Empowerment of Citizens
- ✓ Reduction in corruption
- ✓ Increased efficiency & effectiveness

➤ **Challenges & issues related to RTI Act**

- ✓ Poor Public Awareness
- ✓ Delays in Disposal & Vacancies [E.g., PIL to appoint information commissioners & SIC defunct – Jharkhand & Tripura]
- ✓ Exemptions & Legislative Framework [Sec.8]
- ✓ Digital Personal Data Protection Act, 2023 [Denial of Personal Data]
- ✓ Dilution of the law by 2019 Amendment [service conditions to be determined by the center]
- ✓ Resistance from Public Authorities
- ✓ Inadequate Infrastructure & Capacity building

Social Audit

➤ **What is social audit?**

- ✓ Social Audit involves the active participation of stakeholders, including beneficiaries, community members, and civil society organizations, to assess the impact and effectiveness of programs and policies.
- ✓ **Audit with an objective of measuring the social & ethical performance of a scheme by the beneficiaries.**
- ✓ A social audit is a process through which organizations, particularly public institutions, and non-profits, systematically review and evaluate their actions and performance in terms of social responsibilities, transparency, and accountability.

➤ **Key Features of social audit**

✓ **Stakeholder Involvement**

- Direct involvement of stakeholders, especially those affected by the programs and policies being audited. This can include community members, beneficiaries, civil society organizations, and other relevant parties.

✓ **Participatory Process**

- Encourages active participation and feedback from stakeholders throughout the audit process.
- Ensures that the voices of marginalized and vulnerable groups are heard and considered.

✓ **Assessment of Social Impact**

- Evaluates the social, economic, and environmental impact of programs and policies.

- Focuses on whether the intended outcomes are being achieved and how effectively resources are being utilized.
- ✓ **Transparency and Accountability**
 - Promotes transparency by making information about the organization's activities and decisions publicly accessible.
 - Enhances accountability by holding public officials and organizations responsible for their actions and performance.
- ✓ **Continuous Improvement**
 - Identifies areas of improvement and provides recommendations for enhancing the effectiveness and efficiency of programs and policies.
 - Encourages organizations to adopt best practices and make necessary changes based on audit findings.
- **Process of conducting social audit**
 - ✓ **Planning and Preparation**
 - Define the scope and objectives of the social audit.
 - Identify stakeholders and form an audit committee that includes representatives from the community, beneficiaries, and other relevant parties.
 - Develop a detailed audit plan, including timelines and methodologies
 - ✓ **Data Collection**
 - Gather data through various methods, such as surveys, interviews, public meetings, and document reviews.
 - Ensure that data collection is inclusive and representative of all stakeholder groups.
 - ✓ **Data Analysis**
 - Analyse the collected data to evaluate the performance and impact of programs and policies.
 - Compare actual outcomes with intended objectives and identify gaps or areas of concern.
 - ✓ **Public Meetings and Hearings**
 - Organize public meetings and hearings where findings are presented to the community and stakeholders.
 - Encourage open discussion and feedback from participants to validate the findings and gather additional insights.
 - ✓ **Reporting and Documentation**
 - Prepare a comprehensive report detailing the audit findings, conclusions, and recommendations.
 - Ensure that the report is accessible to all stakeholders and is publicly available.
 - ✓ **Follow-up and Action**
 - Develop an action plan to address the recommendations and findings of the social audit.
 - Monitor the implementation of the action plan and conduct follow-up audits to ensure continuous improvement.

➤ **Example of Social Audit**

1) India's Mahatma Gandhi National Rural Employment Guarantee Act (MGNREGA)

- Social audits have been used extensively to evaluate the implementation of MGNREGA, a large-scale rural employment program in India.
- Community members assess the execution of projects, verify financial records, and ensure that benefits reach the intended beneficiaries.

2) Public Distribution System (PDS) in India

- Social audits are conducted to monitor the distribution of subsidized food and essential commodities under the PDS.
- Helps in identifying and addressing issues such as pilferage, corruption, and inefficiencies.

➤ **Challenges and Issues of Social Audit**

- ✓ Lack of Awareness and Understanding
 - Many stakeholders, including community members and officials, may not fully understand the purpose, process, and benefits of social audits.
- ✓ Limited Capacity and Resources
 - Conducting effective social audits requires trained personnel, financial resources, and adequate infrastructure.
- ✓ Data Availability and Quality
 - Access to accurate and comprehensive data is crucial for a successful social audit.
- ✓ Community Engagement and Participation
 - Ensuring active and meaningful participation from the community can be challenging, especially in areas with low literacy rates, apathy, or mistrust in governance processes
- ✓ Resistance from Authorities
 - Public officials and institutions may resist social audits due to fear of exposure, criticism, or accountability.
- ✓ Political Interference
 - Social audits can be influenced or manipulated by political interests.
- ✓ Follow-up and Implementation of Recommendations
 - The effectiveness of social audits depends on the timely implementation of their recommendations.
- ✓ Lack of Institutionalization and Regulatory Framework
 - Social audits need to be institutionalized and conducted regularly to be effective.
 - Inadequate legal and regulatory frameworks can limit the scope and enforceability of social audits.

➤ **Way forward**

- ✓ Capacity Building - Train community members, civil society organizations, and officials on the objectives, processes, and benefits of social audits.
- ✓ Promoting Awareness - Conduct awareness campaigns to inform the public about the importance of social audits and their role in promoting good governance.

- ✓ Ensuring Data Transparency - Implement policies that mandate the proactive disclosure of relevant data by public authorities.
- ✓ Institutionalizing Social Audits - Integrate social audits into the regular functioning of public institutions and governance processes.
- ✓ Strengthening Legal Frameworks - Advocate for stronger legal and regulatory frameworks to support and enforce social audits.
- ✓ Creating Follow-up Mechanisms - Establish clear procedures and accountability mechanisms for implementing audit recommendations.
- ✓ Enhancing Community Participation - Use participatory methods to engage the community, such as public meetings, focus groups, and participatory rural appraisals.

Lokpal & Lokayukta Act, 2013

➤ **Objective**

- ✓ To establish anti-corruption body to enquire, investigate & prosecute certain public officials & civil servants engaged in acts of corruption.

➤ **Key Provisions of the Act**

- ✓ Establishment of Lokpal and Lokayuktas
 - An independent anti-corruption ombudsman at the central & state level.
- ✓ Jurisdiction
 - The Lokpal has jurisdiction over the Prime Minister, Ministers, Members of Parliament, Group A, B, C, and D officers and officials of the Central Government.
 - Lokayuktas cover state-level public officials.
- ✓ **Composition**
 - The Lokpal consists of a chairperson and up to eight members, of whom 50% must be judicial members.
 - Lokayuktas have a similar structure, with state-specific variations.
- ✓ **Independence and Autonomy**
 - The Lokpal and Lokayuktas are independent of the executive branch, ensuring impartiality.
 - The appointment process involves a selection committee comprising the Prime Minister, Speaker of the Lok Sabha, Leader of Opposition in the Lok Sabha, Chief Justice of India, or a Supreme Court judge nominated by him, and an eminent jurist.
- ✓ **Investigation and Prosecution Powers**
 - The Lokpal has the power to investigate complaints of corruption, conduct preliminary inquiries, and order investigations.
 - It can also prosecute public officials and recommend disciplinary actions.
- ✓ **Asset Disclosure**
 - Public officials are required to declare their assets and liabilities annually.
 - Failure to do so can result in penalties and disciplinary actions.
- ✓ **Whistle-blower Protection**
 - Provisions for protecting whistle-blowers who report corruption and wrongdoing.

➤ **Potential Positive impact of Lokpal on Good Governance**

- ✓ Enhanced Accountability
- ✓ Improved Transparency
- ✓ Impartial investigation
- ✓ Deterrence against corruption
- ✓ Protection of whistle-blowers
- ✓ Strengthening of Rule of law

➤ **Case Studies**

✓ **Compliant against Members of Parliament.**

- The first complaint to the Lokpal was filed against a BJP MP from Uttar Pradesh, accusing him of misusing his position to amass wealth disproportionate to his known sources of income. This case highlighted the Lokpal's readiness to act on complaints and set a precedent for addressing allegations against high-ranking officials.

✓ **Complaint against Group A & B officials**

- As many as 14 complaints sent for preliminary inquiry against Group A and B officials were pending with the chief Vigilance Commissioner and three with the CBI, said the Lokpal data.

➤ **Challenges to the Effectiveness of Lokpal**

✓ **Delayed Appointments**

- The appointment of the Lokpal and its members was significantly delayed after the Act was passed in 2013. The first chairperson and members were appointed only in 2019. This delay meant that the Lokpal was not operational for several years, during which time it could not address corruption cases.

✓ **Limited Jurisdiction and Powers**

- The Lokpal's jurisdiction is limited, and its powers to initiate investigations are often constrained by procedural requirements. For example, it requires prior approval to investigate certain categories of officials.

✓ **Resource Constraints**

- The Lokpal often faces shortages of staff, budget, and infrastructure necessary to carry out its functions effectively. Insufficient resources can hinder the Lokpal's ability to conduct thorough investigations and follow through on cases.

✓ **Political Interference**

- There are concerns about political interference in the functioning of the Lokpal, especially in the appointment process and operational independence. Such interference can undermine the impartiality and effectiveness of the institution.

✓ **Bureaucratic Resistance**

- Bureaucrats and public officials may resist cooperating with the Lokpal, fearing exposure and accountability. Non-cooperation from within the system can delay investigations and weaken the institution's ability to act.

✓ **Legal and Procedural Hurdles**

- Complex legal procedures and requirements can slow down the investigation and prosecution processes.
- **Example** – Most of the complaints getting rejected on **technical grounds**, that the application is not filled in correct format.
- ✓ **Awareness and Public Engagement**
 - There is often a lack of awareness among the general public about the existence and functions of the Lokpal. Low public engagement and awareness can result in fewer complaints being lodged and a reduced overall impact.
- **Reforms / Recommendations Required**
 - ✓ Ensure Timely Appointments
 - ✓ Strengthen Jurisdiction and Powers
 - ✓ Adequate Resources
 - ✓ Protect Independence
 - ✓ Increase Public Awareness
 - ✓ Strengthen Legal Framework
 - ✓ Monitor and Evaluate

Whistle-blowers protection Act, 2014

- **Who is a whistle-blower?**
 - ✓ A whistle-blower is an individual who exposes information or activities within an organization that are deemed illegal, unethical, or not correct.
 - ✓ This information can be about a variety of issues, including but not limited to corruption, fraud, health and safety violations, environmental damage, or other forms of misconduct.
- **Objective**
 - ✓ Aimed at providing a mechanism for individuals to report corruption, misuse of power, and other forms of wrongdoing in public offices while ensuring their protection from retaliation.
- **Key Provisions of the Act**
 - ✓ **Definition of Public Interest Disclosure** - The Act defines "public interest disclosure" as any information provided by a whistle-blower regarding wrongdoing in public offices, including corruption, misuse of power, and criminal offenses.
 - ✓ **Protection for Whistle-blowers** - The Act provides protection to individuals who disclose information on corruption or the wilful misuse of power by public servants.
 - ✓ **Coverage** - The Act applies to all public servants, including government employees, employees of public sector undertakings, and members of the armed forces, judiciary, and Parliament.
 - ✓ **Competent Authority** - The Act designates competent authorities to whom public interest disclosures can be made. These include the Central Vigilance Commission (CVC) at the central level and state vigilance commissions at the state level.
 - ✓ **Procedure for Disclosure** - Whistle-blowers must provide disclosures in writing or electronically, and they must include their identity. Anonymous complaints are generally

not entertained. The competent authority is required to keep the identity of the whistle-blower **confidential** unless the whistle-blower agrees to disclose it.

- ✓ **Penalties for False Complaints** - The Act provides for penalties against individuals who knowingly make false or frivolous complaints, including imprisonment and fines.
- ✓ **Protection Measures** - The Act mandates that any form of victimization of whistle-blowers must be reported to the competent authority, who can take steps to protect the whistle-blower.
- ✓ **Exclusions** - Matters related to national security, intelligence, and certain sensitive areas are excluded from the purview of the Act.

➤ **Challenges and Issues with the Whistle Blowers Protection Act**

✓ **Retaliation Despite Protections**

- In practice, whistle-blowers often still face retaliation and harassment, and the protection mechanisms are not always effectively enforced.
- Example - **Sanjiv Chaturvedi**, a whistle-blower, and an IFS officer, exposed corruption in the Haryana Forest Department. Despite the protections theoretically provided by the Whistle Blowers Protection Act, he faced significant harassment and retaliation.

✓ **Bureaucratic Hurdles**

- The procedural requirements and bureaucratic hurdles can discourage whistle-blowers from coming forward.

✓ **Exclusion of Private Sector**

- The Act primarily covers public sector employees and excludes private sector employees, limiting its scope.

✓ **Lack of Awareness**

- There is a lack of awareness among potential whistle-blowers about the protections offered by the Act and the procedures for making disclosures.

✓ **Need for Strengthening**

- Experts argue that the Act needs to be strengthened to provide better protections and more robust mechanisms for the investigation of disclosures.
- **Example** – need to strengthen **confidentiality & anti-retaliatory** measures.

Prevention of Corruption Act, 1988

➤ **Objective of the Act**

- ✓ The Prevention of Corruption Act, 1988 (PCA) is a key piece of legislation in India designed to combat corruption in public administration.
- ✓ Prevent, deter & punish corrupt activities in public office and to promote transparency & accountability.

➤ **Key Features of the Act**

- ✓ **Definition of Corruption** - The Act provides a comprehensive definition of corruption, including bribery, criminal misconduct, and abuse of power by public servants.
- ✓ **Offences and Penalties**

- **Taking Gratification Other than Legal Remuneration:** Public servants accepting or attempting to obtain any form of gratification other than legal remuneration.
 - **Habitual Offender:** Enhanced penalties for public servants who habitually engage in corrupt practices.
 - **Criminal Misconduct:** Includes misuse of official position to obtain a pecuniary advantage and possession of disproportionate assets.
 - **Punishments:** Penalties range from imprisonment (up to seven years for some offences) to fines, with provisions for more severe punishment for repeat offenders.
 - ✓ **Disclosure of Assets & Liabilities** – Under the act the public servants must periodically disclose their assets and liabilities.
 - ✓ **Powers of Investigation** - The Act empowers various agencies, including the Central Bureau of Investigation (CBI) and state anti-corruption bureaus, to investigate offences under the Act.
 - ✓ **Trial Procedures** - Special judges are designated to try cases under the PCA, ensuring speedy and focused adjudication of corruption cases.
 - ✓ **Preventive Measures** – Vigilance Mechanism, promoting awareness & education.
 - ✓ **Provision for Whistle blowers Protection**
 - ✓ **Amendments** - The Act has been amended several times to address emerging challenges and enhance its effectiveness. The most notable amendment came in 2018, which introduced stricter penalties and broadened the scope of actions considered as corruption.
- **2018 Amendments**
- ✓ **Enhanced Penalties**
 - Stricter penalties for giving bribes (in addition to taking bribes).
 - ✓ **Time-Bound Trial**
 - Introduced provisions for the completion of trials in a time-bound manner, ideally within two years.
 - ✓ **Definition of Bribery**
 - Expanded to include commercial organizations and individuals offering bribes, not just public servants accepting them.
 - ✓ **Protection for Honest Public Servants**
 - Requires prior sanction from the relevant authority before prosecuting serving or retired public officials, intended to protect honest officials from frivolous litigation.
- **Case Studies: Prevention of Corruption Act, 1988**
- ✓ **Commonwealth Games (CWG) Scam** - The 2010 Commonwealth Games held in Delhi were marred by allegations of widespread corruption in the organization and execution of the event. Suresh Kalmadi and others were arrested and faced trials. The scandal brought significant public and media attention to corruption in public projects.
 - ✓ **Vyapam Scam** - The Vyapam scam in Madhya Pradesh involved widespread irregularities in the state's Professional Examination Board (Vyapam), including rigged entrance exams and recruitment tests. The CBI took over the investigation and filed multiple cases under the PCA, accusing officials of conspiracy, cheating, and criminal misconduct. This resulted

in several arrests and numerous officials were charged. The scam exposed the deep-rooted corruption in the education and recruitment system.

- ✓ **2G Spectrum Scam** - The 2G spectrum scam involved the allocation of 2G spectrum licenses to telecom companies at significantly undervalued prices in 2008, causing a huge loss to the exchequer. In 2017, a special CBI court acquitted all the accused due to lack of evidence. The case highlighted the challenges in proving corruption charges and the need for robust investigative mechanisms.

➤ **Interplay Between corruption, transparency & accountability**

- ✓ **Preventing Corruption through Transparency** - Transparency mechanisms like RTI and e-governance reduce the opacity in government functioning, making it harder for corrupt practices to go unnoticed.
- ✓ **Enhancing Accountability through Legal Frameworks** - The PCA provides a legal basis for prosecuting corruption, while bodies like the Lokpal, CVC, and CAG ensure that public officials are held accountable for their actions.
- ✓ **Synergistic Effects** - The combined effect of the PCA, which provides mechanism of accountability in case of corrupt activities along with transparency initiatives creates a robust framework that deters corruption and promotes ethical governance.

Central Vigilance Commission

- **Objective** – to promote integrity, transparency & objectivity in country's public administration.
- **Functions & Responsibilities**
 - ✓ exercise superintendence over the vigilance administrations of the various Central Government Ministries
 - ✓ inquire or cause an inquiry or investigation to be made into any complaint received against any official under its jurisdiction
 - ✓ tender advice to the Central Government and its organizations on such matters as may be referred by them
 - ✓ conducts preliminary inquiry into the complaints referred by Lokpal in respect of Gr. A, B, C& D officials
 - ✓ exercises superintendence over the functioning of the CBI insofar as it relates to the investigation of offences under the Prevention of Corruption Act, 1988
- **Issues and Challenges Facing the CVC**
 - ✓ **Dependence on Other Agencies** - The CVC relies heavily on the CBI and other investigative bodies to carry out its directives. This dependence can lead to delays and inefficiencies.
 - ✓ **Lack of powers to prosecute** - The CVC can only recommend actions and sanctions; it does not have the authority to prosecute offenders. This often results in delays in taking disciplinary actions against corrupt officials.
 - ✓ **Overlap and Jurisdiction Issues** - Overlap of functions with other agencies like the CBI and state vigilance bodies can lead to jurisdictional conflicts and duplication of efforts.
 - ✓ **Resource Constraints** - The CVC often faces a shortage of manpower and resources, which limits its ability to conduct thorough and timely investigations.

- ✓ **Recommendations not binding in nature** - There is no mandatory requirement for government departments to implement the CVC's recommendations. This can lead to a lack of accountability and follow-through on anti-corruption measures.
- ✓ **Political and Bureaucratic Influence** - The appointment of the Central Vigilance Commissioner and Vigilance Commissioners involves a selection process that includes political and bureaucratic inputs, potentially leading to conflicts of interest or bias.

Questions

1. **The Right to Information Act 2005 has been a transformative piece of legislation in India, promoting transparency, accountability, and citizen participation in governance. Discuss [10]**
2. **Social audits are a powerful tool for promoting transparency, accountability, and community participation in governance. Comment [10]**
3. **The Lokpal and Lokayuktas Act, 2013, is a significant piece of legislation in India aimed at combating corruption and enhancing accountability in governance. Discuss [15]**
4. **The Whistle Blowers Protection Act, 2014, represents a critical step towards promoting transparency and accountability in governance in India. Elaborate [10]**
5. **The Prevention of Corruption Act 1988 combined with other transparency and accountability mechanisms, remains a crucial tool in India's fight against corruption. Comment [10]**
6. **Transparency and accountability are foundational elements in building good governance. Comment [10]**

Citizen Charter

➤ **Gensis**

- ✓ In India, the concept of Citizen's Charters was adopted in the late 1990s as part of the administrative reforms aimed at making public services more citizen friendly.
- ✓ Various government departments, public sector enterprises, and other public organizations have developed and implemented Citizen's Charters.

➤ **What is a citizen charter?**

- ✓ A Citizen's Charter is a document that outlines the services provided by a public organization, the standards of service delivery that citizens can expect, the rights and responsibilities of both the service provider and the citizens, and the mechanisms for grievance redressal.
- ✓ It is a tool for promoting transparency, accountability, and responsiveness in public service delivery.

➤ **Objectives**

- ✓ Improve Service Delivery
- ✓ Promote Accountability
- ✓ Encourage Participation
- ✓ Empower Citizens
- ✓ Making system more Responsive

➤ **Key Characteristics of Citizen charter**

- ✓ **Service Standards** - Specifies the types of services provided and the standards of service delivery, including timelines, quality, and procedures.
 - ✓ **Rights and Responsibilities** - Details the rights of citizens in accessing services and the responsibilities of the service provider to meet those standards.
 - ✓ **Grievance Redressal Mechanism** - Provides information on how citizens can file complaints or seek redressal if the services do not meet the specified standards.
 - ✓ **Transparency** - Ensures that information about the services, standards, and grievance mechanisms is easily accessible to the public.
 - ✓ **Accountability** - Establishes accountability mechanisms for service providers to ensure adherence to the charter's commitments.
- **Citizen Charter success stories – case studies**
- ✓ **Passport Seva Project, Ministry of External Affairs**
 - The Ministry of External Affairs in India launched the Passport Seva Project with a Citizen's Charter outlining the standards for passport issuance, including timelines and grievance redressal mechanisms.
 - The project significantly reduced the time required for issuing passports, improved customer satisfaction, and increased transparency in the process. The grievance redressal system became more efficient, leading to quicker resolution of complaints.
 - ✓ **Delhi Jal Board**
 - The Delhi Jal Board (DJB) introduced a Citizen's Charter to improve water supply services in Delhi. The charter detailed service standards for water supply, billing, and complaint resolution.
 - The initiative led to more reliable water supply, increased billing accuracy, and faster resolution of customer complaints. Citizen satisfaction improved due to better communication and responsiveness from the DJB.
 - ✓ **Municipal Corporation of Greater Mumbai**
 - The MCGM introduced a Citizen's Charter to improve various municipal services, including sanitation, water supply, and building permits.
 - The charter led to more efficient municipal services, quicker resolution of complaints, and greater citizen satisfaction. Public awareness campaigns helped citizens understand their rights and the services they could expect from the municipal corporation.
- **Challenges in Implementation [DARPG]**
- ✓ No consultative process
 - ✓ Lack of awareness about the philosophy, features & goals of the charter [service providers]
 - ✓ Lack of publicity & non-compliance
 - ✓ Lack of finances for training & logistical support
 - ✓ lack of review & updation
 - ✓ No Legal Accountability
 - ✓ Most of them are unrealistic & not formulated in local language.

➤ **Recommendations [2nd ARC]**

- ✓ Consultative process [Bottom up]
- ✓ Orientation of staff members & Skill development
- ✓ Awareness & Publicity through various means
- ✓ Finances for awareness & orientation
- ✓ Database for consumer grievances and redress
- ✓ Replication of best models (Sevottam Model)

Sevottam Model

➤ **What is it?**

- ✓ The Sevottam Model is a framework for improving public service delivery, developed by the Government of India.
- ✓ The name "Sevottam" is derived from the Hindi words "Seva" (Service) and "Uttam" (Excellence), meaning "Excellence in Service."
- ✓ This model provides a structured approach to enhancing the quality of public services and ensuring that they meet the expectations of citizens.

➤ **Key Components of the Sevottam Model**

✓ **Citizen's Charter**

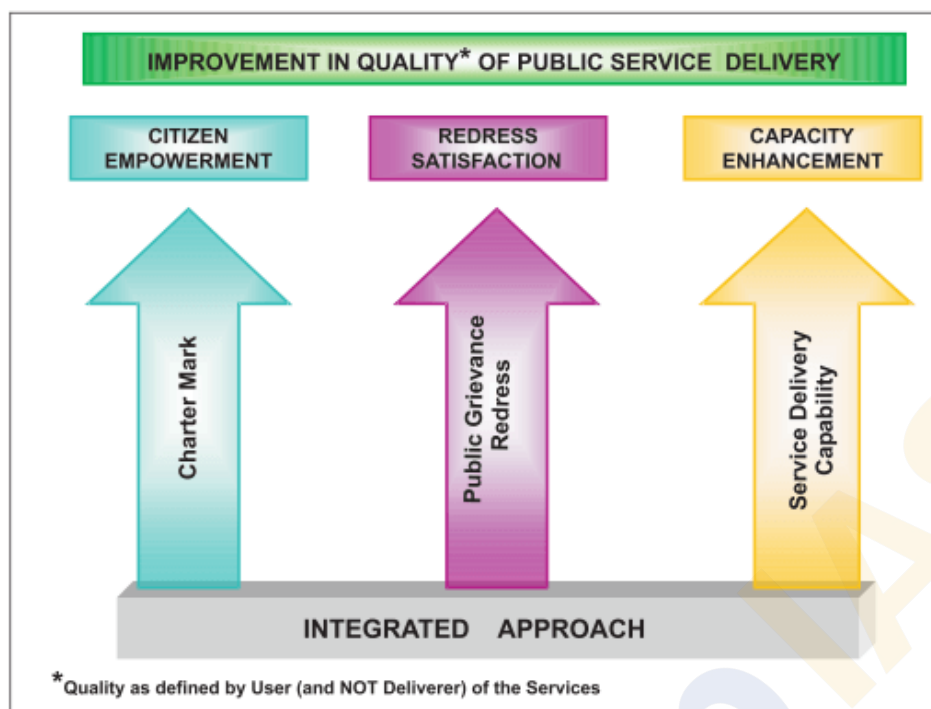
- This involves creating a Citizen's Charter that clearly defines the services provided, the standards of service delivery, timelines, and the rights and responsibilities of both service providers and citizens.
- It ensures transparency and sets clear expectations for citizens regarding the quality and timeliness of services.

✓ **Public Grievance Redress Mechanism**

- This module focuses on establishing an effective grievance redressal system to handle complaints and feedback from citizens.
- It ensures that citizens have a platform to voice their concerns and that these grievances are addressed promptly and effectively.

✓ **Service Delivery Capability**

- This involves assessing and enhancing the capability of the organization to deliver services as per the defined standards.
- It includes training and capacity-building for staff, improving infrastructure, and streamlining processes to ensure efficient service delivery.



Intended Outcomes of Implementing Sevottam

- ✓ **Monitoring and Evaluation**
 - Continuously monitor the performance of the organization against the defined service standards.
 - Use feedback from citizens and performance data to identify areas for improvement and implement corrective actions.
- **Case study – Sevottam Model**
 - ✓ **Sevottam Model in the Indian Postal Department**
 - The implementation of the Sevottam Model in the Indian Postal Department demonstrated significant improvements in service delivery and customer satisfaction. By focusing on clear service standards, effective grievance redressal, and enhancing service delivery capabilities through training and technology, the department successfully addressed many of the challenges it faced. This case study highlights the effectiveness of the Sevottam Model in transforming public service organizations and improving their interactions with citizens.
 - ✓ **Sevottam Model in the Income Tax Department**
 - The Income Tax Department of India faced numerous challenges related to service delivery, including delays in processing tax returns, lack of transparency, and inefficient grievance redressal mechanisms. To address these issues and enhance taxpayer satisfaction, the department adopted the Sevottam Model.

Questions

1. The Sevottam model provides a structured approach in enhancing the quality of public services by focussing on integrated approach to public service delivery. Comment [10]
2. What do you understand by citizen charter? How far do you think they can be an effective tool in achieving good governance? Suggest measures to improve them. [15]